

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Squad #15	CCRB Case #: 201407432	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/22/2014 5:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/22/2016	Precinct: 09
Date/Time CV Reported Wed, 07/23/2014 12:53 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/23/2014 12:53 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Zappulla	30452	937783	PSA 4
2. SGT Robert Clark	00253	914322	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Robert Clark	Abuse: Sgt. Robert Clark questioned § 87(2)(b)	A . Substantiated
B . POM Frank Zappulla	Abuse: PO Frank Zappulla questioned § 87(2)(b)	B . Substantiated
C . POM Frank Zappulla	Discourtesy: PO Frank Zappulla spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Frank Zappulla	Abuse: PO Frank Zappulla seized § 87(2)(b)'s property.	D . Substantiated
E . SGT Robert Clark	Abuse: Sgt. Robert Clark supervised the seizure of § 87(2)(b)'s property.	E . Substantiated
F . POM Frank Zappulla	Discourtesy: PO Frank Zappulla acted rudely toward § 87(2)(b)	F . Unsubstantiated
G . SGT Robert Clark	Abuse: Sgt. Robert Clark threatened § 87(2)(b) with the use of force.	G . Unsubstantiated
H . POM Frank Zappulla	Abuse: PO Frank Zappulla threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Frank Zappulla	Abuse: PO Frank Zappulla threatened to arrest § 87(2)(b)	I . Unsubstantiated
J . SGT Robert Clark	Abuse: Sgt. Robert Clark threatened to arrest § 87(2)(b)	J . Unsubstantiated
K . SGT Robert Clark	Discourtesy: Sgt. Robert Clark spoke rudely to § 87(2)(b)	K . Unsubstantiated
L . POM Frank Zappulla	Abuse: PO Frank Zappulla refused to provide his shield number to § 87(2)(b)	L . Unfounded
M . SGT Robert Clark	Abuse: Sgt. Robert Clark refused to provide his shield number to § 87(2)(b)	M . Substantiated
N . SGT Robert Clark	Abuse: Sgt. Robert Clark questioned § 87(2)(b)	N . Alleged Victim Unavailable
O . POM Frank Zappulla	Abuse: PO Frank Zappulla questioned § 87(2)(b)	O . Alleged Victim Unavailable

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 22, 2014, at approximately 5:45 p.m., § 87(2)(b) was alone in front of § 87(2)(b) in Manhattan when he heard two officers, identified via investigation as Sgt. Robert Clark of the Criminal Intelligence Section and PO Frank Zappulla of Police Service Area 4, allegedly yell from a grey unmarked Impala “Where’s the drugs?” (**Allegations A and B**).

When § 87(2)(b) approached the vehicle, PO Zappulla asked § 87(2)(b) if he had money, drugs or anything else on him (within **Allegation B**). PO Zappulla then allegedly called § 87(2)(b) a “fucking asshole” (**Allegation C**).

Both officers exited their vehicle and PO Zappulla allegedly told § 87(2)(b) “I don’t give a fuck about your religion shit or whatever the fuck you’re doing” (within **Allegation C**). PO Zappulla then allegedly took § 87(2)(b)’s handkerchief from and threw it onto a nearby bench (**Allegations D, E and F**). Sgt. Clark then allegedly removed and extended his asp and threatened § 87(2)(b) by stating, “I have a gun I can shoot you and get away with it” (**Allegation G**). It is alleged PO Zappulla then stated, “I can either hit you (**Allegation H**) or put drugs in your pocket and take you in (**Allegation I**). Both officers then allegedly told § 87(2)(b) that they got § 87(2)(b)’s brother off the streets and they could get him off the streets too (within **Allegation I; Allegation J**).

§ 87(2)(b) requested both officers’ shield numbers and Sgt. Clark responded “You just said you had heroin in your thing. You said I don’t have the balls to open it” (**Allegation K**). PO Zappulla allegedly responded, “We aren’t going to give you anything. If you want it you have to come and get it (**Allegation L**).” Sgt. Clark added that since they were not doing anything to him, they did not have to provide him with the requested information (**Allegation M**). Neither of the officers provided § 87(2)(b) with their shield number. When § 87(2)(b) walked away from the officers, PO Zappulla told him “Go ahead you fucking asshole” (within **Allegation C**). Finally, § 87(2)(b) observed Sgt. Clark and PO Zappulla question § 87(2)(b) (**Allegations N and O**, respectfully), who was deemed unavailable during the investigation.

§ 87(2)(g)

Civil, Mediation and Criminal Histories

As of February 20, 2015, which is five months past the 90-day filing deadline, § 87(2)(b) had not filed a notice of claim in regards to this incident (encl. J12).

§ 87(2)(b) rejected mediation as an alternative to resolve this complaint § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the fourth CCRB complaint filed by § 87(2)(b) (encl. B4).
 - § 87(2)(b)
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- Sgt. Clark has been a member of the service for 21 years and has no substantiated CCRB allegations against him (encl. B1-B2). § 87(2)(g)
- PO Zappulla has been a member of the service for 9 years and has no substantiated CCRB allegations against him (encl. B3) § 87(2)(g)

Civilian Statements

Complainant/Victim: § 87(2)(b) (encl. C4-C11)

- § 87(2)(b) was walking to his sister's house located at § 87(2)(b). While in front of that building he heard two police officers, identified via investigation as Sgt. Clark and PO Zappulla, yell from a grey unmarked Impala "Where's the drugs?"
- § 87(2)(b) approached the police vehicle and recognized that the occupants were the same police officers who had "raided" his sister's apartment, so he responded that he thought the officer got it all during the raid. PO Zappulla asked § 87(2)(b) if he had money, drugs or anything else on him. § 87(2)(b) started speaking disrespectfully to the officers because they were being disrespectful to him. Next, PO Zappulla called § 87(2)(b) a "fucking asshole."
- Both officers then exited their vehicle and followed § 87(2)(b) who was walking away. PO Zappulla told § 87(2)(b) "I don't give a fuck about your religion shit or whatever the fuck you're doing" and threw a red handkerchief that § 87(2)(b) held onto a nearby bench. § 87(2)(b) picked up his handkerchief and began to walk away from the officers. § 87(2)(b) walked through a nearby tunnel and the officers followed; Sgt. Clark extended his asp, and then folded it up and returned it to his belt.
- § 87(2)(b)'s nephew § 87(2)(b) began filming the following part of the encounter, using his cellular phone. Since § 87(2)(b) was far away from the officers and § 87(2)(b) this recording was unable to capture the corresponding audio. While near a wall, Sgt. Clark threatened § 87(2)(b) "I have a gun I can shoot you and get away with it." PO Zappulla added, "I can either hit you or put drugs in your pocket and take you in." Both officers then stated that they got § 87(2)(b)'s brother off the streets and said they could get him off the streets too.
- § 87(2)(b) asked the officers if they were detaining him or if he was free to leave and they both responded that he was free to leave. § 87(2)(b) requested both officers' shield numbers and PO Zappulla responded, "We aren't going to give you anything. If you want it you have to come and get it." Sgt. Clark stated that since they were not doing anything to him, they did not have to provide him with the information. Neither of the officers provided § 87(2)(b) with their shield number.

- While § 87(2)(b) walked away from the officers, PO Zappulla told him “Go ahead you fucking asshole” and then told § 87(2)(b) that they were going to come back.
- The officers then approached § 87(2)(b) § 87(2)(b)'s friend “who was just standing there” and began to “harass” him. § 87(2)(b) did not hear any of the interaction between the officers and § 87(2)(b).

Video Footage:

The following video footage was recorded by § 87(2)(b) § 87(2)(b)'s nephew. § 87(2)(b) e-mailed three videos in regards to this incident to the undersigned investigator, two of which are featured below. The third video did not capture any interaction between § 87(2)(b) and the subject officers.

Video #1

- This video is thirty-eight seconds long.
- 00:04: The video opens with Sgt. Clark, PO Zappulla and § 87(2)(b) interacting by a bench. The interaction is being filmed from far away and therefore their interaction cannot be heard. Both officers are standing in front of and within a foot of § 87(2)(b). § 87(2)(b) is wearing a light shirt and blue jeans. Sgt. Clark is wearing a navy blue shirt and army fatigue cargo shorts and a hat. PO Zappulla is wearing a light blue shirt with gray cargo pants.
- 00:13: Sgt. Clark appears to gesture or touch the red handkerchief in § 87(2)(b)'s hand.
- 00:22: PO Zappulla says, "Go!" and Sgt. Clark steps to the side to get out of § 87(2)(b)'s way.
- 00:25: § 87(2)(b) says "You're waving your badge at me?"

Video #2

- This video is fifty-four seconds long.
- 00:01: The video opens with Sgt. Clark and PO Zappulla walking towards § 87(2)(b) § 87(2)(b)'s acquaintance, with § 87(2)(b) following behind them.
- 00:05: § 87(2)(b) states, "Yo! Get these niggas numbers." A female voice asks what happened and § 87(2)(b) responds, "They're talking shit about ya'll."
- 00:11: Sgt. Clark and PO Zappulla approach and talk to § 87(2)(b) who is wearing a white shirt and orange sweatpants.
- 00:20: The camera moves closer to Sgt. Clark, PO Zappulla and § 87(2)(b). § 87(2)(b) states, "Yo! Can you flash your badge again." Sgt. Clark looks at the camera and neither officer responds.
- 00:32: § 87(2)(b) says, "Can you show me the badge number again," and PO Zappulla states his badge number as, "30452." Sgt. Clark does not respond.
- 00:38: A woman in a blue tank top and orange skirt asks someone why they are arguing with the officers.
- 00:43: Sgt. Clark says, "You just said you had heroin in your thing. You said I don't have the balls to open it" and § 87(2)(b) responds, "No, you asked me, you said heroin."
- 00:47: § 87(2)(b) appears to be interacting with Sgt. Clark. § 87(2)(b) can be heard saying, "I don't care what you have on video. I just want your number," and then asks anyone if they have a pencil. § 87(2)(b) tells § 87(2)(b) to just ask Sgt. Clark for it again.

- 00:51: Sgt. Clark appears to start walking away.

Contact Attempts to § 87(2)(b) and § 87(2)(b)

Inv. Kerstein called § 87(2)(b) at his telephone number listed on his Lexis Nexis database search on August 22, 25, September 8, 16, and 23, 2014; however the telephone number was not in service. Inv. Kerstein mailed please call letters to § 87(2)(b)'s address, also listed on his Lexis Nexis database search, on August 18 and 25, 2014. Neither letter has been returned to the CCRB by the United States Postal Service as of the date of this report.

Inv. Kerstein sent a please call e-mail to § 87(2)(b) on July 31, 2014. Inv. Kerstein called § 87(2)(b) at his telephone number listed on his Lexis Nexis database search on August 20 and September 3, 2014. On both occasions his aunt answered the telephone, stated that he was not available and would have § 87(2)(b) return the telephone call. On September 16, 2014, Inv. Kerstein called § 87(2)(b) however the individual who answered the telephone disengaged the call. On October 16 and 20, 2014, Inv. Kerstein called § 87(2)(b) however on these dates the telephone number was not in service. Inv. Kerstein mailed a please call letter to § 87(2)(b)'s address, also listed on his Lexis Nexis database search, on August 18, 2014 and Inv. Mleczkowski mailed him a please call letter on January 22, 2015. These letters have not been returned to the CCRB by the United States Postal Service as of the date of this report.

§ 87(2)(b) stated that § 87(2)(b) whose last name he did not know, also witnessed this incident. He mentioned that § 87(2)(b) lived on the § 87(2)(b) floor of § 87(2)(b). However, a Lexis Nexis database (encl. G2-G4) search for this name and address yielded negative results for an individual named § 87(2)(b). Since § 87(2)(b) declined to provide any additional contact information for § 87(2)(b) the investigation exhausted its efforts in trying to contact and obtain a statement from him.

Subject Officer: SERGEANT ROBERT CLARK (encl. E1-E5)

Memo Book:

- Sgt. Clark made detailed entries about this incident in his memo book (encl. E1-E2), which were consistent with his CCRB statement.

CCRB Testimony:

- On July 22, 2014 Sgt. Clark and PO Zappulla were plain clothed, seated in their unmarked police vehicle in front of § 87(2)(b) in Manhattan, canvassing for a wanted person, unrelated to § 87(2)(b). Unprompted, § 87(2)(b) approached them, informed them that he had heroin on him and showed them a handkerchief, which he held in his hand. § 87(2)(b) then said "If you have any balls, come and get it." Prior to this date, Sgt. Clark had not interacted with § 87(2)(b).
- The handkerchief was closed, had a knot in it and it appeared to be wrapped around what could have been a bundle of heroin. Sgt. Clark stated that he could not make an accurate determination of the dimensions of the knot. Because of the officers' observation of the handkerchief, they exited the vehicle and followed § 87(2)(b) who was walking away.
- § 87(2)(b) had an agitated demeanor and told the officers "What's the problem?" Sgt. Clark responded "I thought you said you had heroin on you," which § 87(2)(b) refused. § 87(2)(b) then opened and showed Sgt. Clark the handkerchief, which had inside of it some type of weight and not a controlled substance.

- Sgt. Clark asked § 87(2)(b) if he had any identification, which he denied. § 87(2)(b) asked Sgt. Clark if he was free to leave, which Sgt. Clark confirmed. PO Zappulla and Sgt. Clark then left the scene without speaking with any additional civilians before leaving.
- Sgt. Clark stated that he and PO Zappulla did not yell towards § 87(2)(b) “Where’s the drugs?” Sgt. Clark stated that PO Zappulla did not ask § 87(2)(b) “Do you have money, drugs or anything else on you?” nor did PO Zappulla state to him “I can do whatever I want. I can either hit you or put drugs in your pocket and take you in.” Sgt. Clark stated that PO Zappulla did not call § 87(2)(b) a “Fucking asshole” nor state to him “I don’t give a fuck about your religion shit or whatever the fuck you’re doing.” Sgt. Clark stated that PO Zappulla did not throw § 87(2)(b)’s handkerchief. Sgt. Clark denied threatening to shoot § 87(2)(b).
- Sgt. Clark could not recall if he or PO Zappulla extended his asp towards § 87(2)(b). § 87(2)(b) Sgt. Clark added that he could not recall if he or PO Zappulla had an asp on them at the incident time. PO Zappulla denied that he or Sgt. Clark extended their asps.
- Prior to being presented with video footage from the incident, Sgt. Clark indicated that § 87(2)(b) did not request the officers’ shield numbers and the officers did not provide him with that information. Sgt. Clark stated that the officers did not state to § 87(2)(b) “We aren’t going to give you anything. If you want it you have to come and get it.” Sgt. Clark noted that the officers did not state to § 87(2)(b) that “Since they were not doing anything to him, they did not have to provide him with the information.”
- Sgt. Clark was presented with the second video provided to the CCRB during his interview. Sgt. Clark acknowledged that he was the officer wearing a dark blue shirt. After viewing the video, Sgt. Clark could not recall if he provided his shield number to § 87(2)(b). Sgt. Clark could not recall why he spoke with § 87(2)(b) however he noted that he may have been addressing some of § 87(2)(b)’s questions.

Subject Officer: PO FRANK ZAPPULLA (encl. D1-D7)

- PO Zappulla was initially interviewed at the CCRB by Inv. Kerstein on December 12, 2014. He was re-interviewed by the undersigned investigator § 87(2)(g) § 87(2)(g) § 87(2)(g).
- PO Zappulla and Sgt. Clark were within their vehicle when § 87(2)(b) approached them and started yelling at them, calling them “pussies” and asking them if they wanted heroin, since he had heroin on him. PO Zappulla believes that § 87(2)(b) mentioned heroin because that is what the search warrant on his sister’s house was for and officers had been buying heroin from her for a month and a half before obtaining the warrant.
- § 87(2)(b) displayed to the officers a red handkerchief and stated that he had heroin inside of it. PO Zappulla believed that § 87(2)(b) held the bulge that the handkerchief created within his hand, since PO Zappulla did not observe a bulge at that point.
- PO Zappulla and Sgt. Clark exited their vehicle and followed § 87(2)(b) into a courtyard at § 87(2)(b). PO Zappulla indicated that they followed § 87(2)(b) because he had been yelling at their car.
- PO Zappulla asked § 87(2)(b) what was in his handkerchief and § 87(2)(b) responded that there were quarters and a religious item therein. § 87(2)(b) then

- handed the handkerchief to PO Zappulla, who took the handkerchief from § 87(2)(b) § 87(2)(b) examined the contents, and confirmed that it contained quarters.
- PO Zappulla did not recall if he placed the handkerchief on the bench or if he handed it back to § 87(2)(b) PO Zappulla stated that he did not throw § 87(2)(b)'s handkerchief. PO Zappulla stated that Sgt. Clark did not throw the handkerchief either, since he did not believe that he Sgt. Clark touched the handkerchief.
 - § 87(2)(b) repeatedly asked PO Zappulla and Sgt. Clark if he was free to leave and PO Zappulla responded that they never stopped him and never told him he could not leave.
 - PO Zappulla denied that he or Sgt. Clark extended their asps.
 - § 87(2)(b) requested PO Zappulla's shield number and PO Zappulla showed his shield to § 87(2)(b) and verbally stated his shield number. PO Zappulla could not recall if § 87(2)(b) asked for Sgt. Clark's shield number. PO Zappulla noted that Sgt. Clark did not state to § 87(2)(b) that since the officers were not doing anything to him, they did not have to provide him with that information.
 - PO Zappulla did not ask § 87(2)(b) if he had money, drugs or anything else on him. PO Zappulla did not state to § 87(2)(b) "I don't give a fuck about your religion shit or whatever the fuck you're doing." PO Zappulla never called § 87(2)(b) a "fucking asshole." PO Zappulla did not state to § 87(2)(b) "I can either hit you or put drugs in your pocket and take you in." PO Zappulla noted that Sgt. Clark did not threaten to shoot § 87(2)(b).
 - PO Zappulla viewed the first video that was provided to the CCRB and identified himself at the 00:07 second mark as the officer on the left in the navy shirt with light blue sleeves and that the other officer was Sgt. Clark. PO Zappulla went on to say that the video portrays the end of the interaction when § 87(2)(b) asked if he could leave and they explained to him that they never stopped him or said he could not leave.

NYPD Documentation

Police Service Area 4, Handwritten and Electronic Stop, Question and Frisk Log

The Police Service Area 4 handwritten and electronic Stop, Question and Frisk Log from the date and time of the incident yielded negative results for a Stop, Question and Frisk report completed for § 87(2)(b) (encl. F1-F3).

9th Precinct, Electronic Stop, Question and Frisk Log

Inv. Kerstein requested the aforementioned documentation from the NYPD's Monitoring and Analysis Section, however that office informed the undersigned that there were negative results for this document (encl. K3).

Finding and Recommendations

Identification of Subject Officer

PO Zappulla and Sgt. Clark both admitted to interacting with § 87(2)(b)

Allegation Not Pleaded

§ 87(2)(g)
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§ 87(2)(g)

Allegation A- Abuse of Authority: Sgt. Robert Clark questioned § 87(2)(b)

Allegation B- Abuse of Authority: PO Frank Zappulla questioned § 87(2)(b)

§ 87(2)(b) alleged that while within their vehicle, Sgt. Clark and PO Zappulla asked him “Where’s the drugs?” § 87(2)(b) further alleged that upon exiting their vehicle, PO Zappulla asked him if he had money, drugs or anything else on him. A video recording filmed by § 87(2)(b) did not capture this portion of the incident.

Sgt. Clark and PO Zappulla denied making the aforementioned statements to § 87(2)(b). PO Zappulla stated that § 87(2)(b) approached their vehicle and displayed a handkerchief towards them that had a knot inside of it. PO Zappulla stated that § 87(2)(b) indicated that there was heroin within the handkerchief, while Sgt. Clark stated that § 87(2)(b) claimed to have heroin on him. Sgt. Clark stated that upon exiting the vehicle, § 87(2)(b) voluntarily showed him the contents of the handkerchief that he held, which contained some type of weight and not a controlled substance. Both officers claimed that § 87(2)(b) volunteered that he was in possession of heroin, without the officers prompting him to provide this answer. PO Zappulla stated that when he asked § 87(2)(b) what was within his handkerchief, § 87(2)(b) handed the handkerchief to him and PO Zappulla noted that there were quarters therein.

An officer may question an individual when he has founded suspicion that criminal activity is afoot. People v. DeBour, 40 N.Y. 2d 210 (1976) (encl. A10-A20).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C- Discourtesy: PO Frank Zappulla spoke rudely to § 87(2)(b)

Allegation F- Discourtesy: PO Frank Zappulla acted rudely towards § 87(2)(b)

§ 87(2)(b) alleged that PO Zappulla told him “I don’t give a fuck about your religion shit or whatever the fuck you’re doing.” § 87(2)(b) additionally alleged that PO Zappulla then threw his red handkerchief, which he indicated is correlated to his religion since it is his lucky charm, onto a nearby bench. § 87(2)(b) additionally alleged that PO Zappulla called him a “fucking asshole” twice. While the video recording captures § 87(2)(b) holding his handkerchief, it did not capture PO Zappulla throwing the handkerchief. Additionally, while the

video recording may have captured the moment when PO Zappulla allegedly spoke rudely to § 87(2)(b) the video recording did not have the audio to confirm if this allegation occurred.

PO Zappulla denied the aforementioned allegations and Sgt. Clark denied witnessing the aforementioned allegations. PO Zappulla stated that § 87(2)(b) handed his handkerchief to PO Zappulla and that he examined the contents therein. PO Zappulla stated that he either handed the handkerchief back to § 87(2)(b) or he placed the handkerchief on the bench. Sgt. Clark stated that § 87(2)(b) displayed the contents of the handkerchief to him, while holding the handkerchief in his hand.

§ 87(2)(g)
It is therefore recommended that
Allegations C and F be closed as **unsubstantiated**.

Allegation D- Abuse of Authority: PO Frank Zappulla seized § 87(2)(b) s property.

Allegation E- Abuse of Authority: Sgt. Robert Clark supervised the seizure of § 87(2)(b) s property.

PO Zappulla stated that § 87(2)(b) voluntarily handed the handkerchief to him, who examined its contents and observed that there were quarters therein. Sgt. Clark stated that when he told § 87(2)(b) “I thought you had heroin on you,” § 87(2)(b) then voluntarily opened his handkerchief and showed him the contents of the handkerchief, which included some type of weight.

§ 87(2)(b) never alleged that officers searched his handkerchief during this incident; he instead stated that PO Zappulla took his handkerchief from him. § 87(2)(g)

An officer needs probable cause to either seize or search an object in which a civilian retains an expectation of privacy. People v. Cabrera, 215 A.D. 2d 216 (1st Dept. 1995) (encl. A22).

§ 87(2)(g)
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§ 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **substantiated**.
Allegation G- Abuse of Authority: Sgt. Robert Clark threatened § 87(2)(b) with the use of force.

Allegation H- Abuse of Authority: PO Frank Zappulla threatened § 87(2)(b) with the use of force.

Allegation I- Abuse of Authority: PO Frank Zappulla threatened to arrest § 87(2)(b)

Allegation J- Abuse of Authority: Sgt. Robert Clark threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Clark removed and extended his asp and then immediately folded it back up and put it back on his belt. § 87(2)(b) additionally alleged that Sgt. Clark told him “I have a gun, I can shoot you and get away with it.” § 87(2)(b) alleged that PO Zappulla told him “I can either hit you or put drugs in your pocket and take you in.” Both officers then allegedly told § 87(2)(b) that they got § 87(2)(b)s brother off the streets and they could get him off the streets too. The video footage did not capture Sgt. Clark removing and extending his asp. Additionally, the video recording may have captured the moment when PO Zappulla allegedly spoke rudely to § 87(2)(b) or when both officers allegedly threatened to arrest § 87(2)(b) the video recording did not have the audio to confirm if this allegation occurred.

Sgt. Clark could not recall if he or PO Zappulla extended his asp towards § 87(2)(b) Sgt. Clark added that he could not recall if he or PO Zappulla had an asp on them at the incident time. PO Zappulla denied that he or Sgt. Clark extended their asps. Sgt. Clark denied that he or PO Zappulla threatened to shoot § 87(2)(b) PO Zappulla denied that either officer made these threats. PO Zappulla denied that he or Sgt. Clark threatened to arrest § 87(2)(b) Sgt. Clark denied that he or PO Zappulla threatened to arrest § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations G, H, I and J** be closed as **unsubstantiated**.

Allegation K- Discourtesy: Sgt. Robert Clark spoke rudely to § 87(2)(b)

While § 87(2)(b) did not allege that Sgt. Clark spoke rudely towards him, the video recording filmed by § 87(2)(b) captures Sgt. Clark state to § 87(2)(b) “You just said you had heroin in your thing. You said I don't have the balls to open it.” § 87(2)(b) responds during the video recording “No, you asked me, you said heroin.”

§ 87(2)(g)

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§ 87(2)(g) Therefore, it is recommended that **Allegation K** be closed as **unsubstantiated**.

Allegation L- Abuse of Authority: PO Frank Zappulla refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that he requested both officers' shield numbers and PO Zappulla responded, "We aren't going to give you anything. If you want it you have to come and get it." § 87(2)(b) alleged that PO Zappulla did not provide § 87(2)(b) with his shield number.

During the video footage, § 87(2)(b) says to the officers "Can you flash your badge again." Sgt. Clark looks at the camera and neither officer responds. § 87(2)(b) repeated the aforementioned request and PO Zappulla responded "30452." A search of the CCRB's Complaint Tracking System Officer Identification Tool confirmed that "30452" is in fact PO Zappulla's shield number. § 87(2)(g)
§ 87(2)(g).

PO Zappulla stated that he verbally provided his shield number to § 87(2)(b)

NYPD Patrol Guide Section 203-09 requires officers to "courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so" (encl. A1).

§ 87(2)(g)
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§ 87(2)(g) it is recommended that **Allegation L** be closed as **unfounded**.

Allegation M- Abuse of Authority: Sgt. Robert Clark refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that he requested both officers' shield numbers and that Sgt. Clark told § 87(2)(b) that since the officers were not doing anything to him, they did not have to provide him with that information. § 87(2)(b) alleged that Sgt. Clark did not provide § 87(2)(b) with his shield number.

During the video footage, § 87(2)(b) says to the officers "Can you flash your badge again." Sgt. Clark looks at the camera and neither officer responds. § 87(2)(b) repeated the aforementioned request and PO Zappulla responded "30452." A search of the CCRB's Complaint Tracking System Officer Identification Tool confirmed that "30452" is in fact PO Zappulla's shield number. § 87(2)(b) further stated "I just want your number." Sgt. Clark did not respond to that request. Sgt. Clark did not state in the video that since the officers were not doing anything to § 87(2)(b) they did not have to provide him with their shield numbers.

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date